Westbrook Planning Board

~ Planning Board Meeting ~

Date: Tuesday, October 6, 2026
Time: 7:00 PM
Location: Westbrook High School (Room 114), 125 Stroudwater St. (Hybrid via Zoom)
Video: https://vimeo.com/1233536529
Packet: https://www.westbrookmaine.gov/AgendaCenter/ViewFile/Agenda/_10062026-1030

Timestamps below are clickable [0:00]-style links — they jump straight to that moment in the video.

This summary highlights the meeting's key discussions and decisions, with direct quotes and timestamps for verification — it is not a substitute for watching the full meeting. *Summarization necessarily condenses and selects; for complete context, nuance, and anything not covered here, watch the full video at the link above. (Produced by: WestbrookCurrents.com)*

Unofficial summary. *This is produced by Westbrook Currents, an independent site — not the City of Westbrook — and may contain mistakes. For the official record, see the City's approved minutes and the meeting video.*

I. Roll Call

Roll Call & Voting Procedure [09:37]

Discussion Summary

Chair Larry McWilliams called the meeting to order and reviewed the board's updated public-comment policy (adopted citywide after the Sept. 14, 2026 City Council meeting): commenters are asked, not required, to state only their name and Westbrook residency rather than a home address. Roll call: six of seven regular members — McWilliams, Vice Chair John Turcotte, Karen Axelson, Nancy Litrocapes, Kevin Price, and Robin Tannenbaum — answered present; Jason Frazier was absent. Both alternates, Oriana Farnham and Lucas Schrage, were seated to fill the vacancy and alternated votes by agenda item, per the board's standing practice.

Key Decisions

✓ Quorum established.

Action Items

None.

Minutes — August 4th & September 1st [12:07]

Discussion Summary

Approved with no discussion.

Key Decisions

✓ Approved unanimously by roll call.

Action Items

None.

Administrative Item (not on the printed agenda)

26-000404 — Rock Row South Campus Subdivision Amendment — Extension Request [13:09]

Not listed on the printed agenda packet — included here because it is part of this meeting's actual record.

Discussion Summary

Wayne Morrill (Jones & Beach Engineers, for Dirigo Center Developers, LLC) requested a 90-day extension to record a subdivision amendment the board approved June 2, 2026, while the applicant finishes getting sign-off from the City of Portland (the parcel crosses the city line). Staff confirmed it only needs to come back to the board for signature, not a new review.

Key Decisions

✓ Approved unanimously by roll call — extends the recording deadline to January 28, 2027. All findings/conditions of the June 2, 2026 approval remain valid.

Action Items

None.

New Business

26-000827 — Subdivision Amendment — Wormell Farms Subdivision [16:19]

Discussion Summary

Matthew Peltier (Terradyn Consultants, for Wormell Farms, LLC) requested transferring ~10.02 acres between two commonly-owned lots (Lot 2 and Lot 3 of the former Wormell Farm) so Lot 3 meets net-residential-area requirements for a planned ~108-unit apartment project (now called Minnowbrook Apartments). Lot 2's condominium project (59 units under construction) is unaffected. Member Robin Tannenbaum asked for clearer, higher-contrast exhibits on future submittals; staff agreed to flag that for the applicant.

Key Decisions

✓ Approved unanimously by roll call.

Action Items

None.

26-000274 — Site Plan, Subdivision — Rock Row South Campus, Building SG & SR [28:13]

Discussion Summary

Dirigo Center Developers, LLC / Waterstone Properties Group presented a 6-story, 277-unit residential building (SR) and a 7-story, 700-space parking garage with ground-level retail (SG). The applicant confirmed the garage is intended to remain free for Rock Row retail customers (subject to change) and that the team is coordinating with Portland Trails on an underpass/bike-trail connection near the quarry. Building height is capped at 12 stories/150 feet under the zone. City Planner Rebecca Spitella noted the applicant isn't seeking approval tonight, only feedback, pending state permits.

Key Decisions

✓ Board voted unanimously to continue the application so the applicant can finalize design and incorporate state-permit feedback.

Action Items
None.

26-000777 — Land Use Ordinance Amendment — Data Centers [55:43]

Discussion Summary
Staff reviewed the item's history: a City Council-enacted 180-day moratorium (effective June 1, 2026, expiring late November) referred the question to the Planning Board, which held its own workshop last month. The proposed ordinance defines and prohibits data centers as a principal use citywide and removes them from the Rock Row Contract Zone — currently the only zone that allows them — while still permitting small, on-site "accessory use" server rooms. Member Robin Tannenbaum confirmed with staff that the Rock Row property owner has been informed this isn't necessarily a permanent ban, since the land use ordinance can be revisited if a specific future proposal arises.

Key Decisions
✓ Board voted unanimously to recommend the ordinance amendment to City Council — expected first reading Oct. 19, second reading early November.

Action Items
None.

Workshop — Stroudwater Meadows (24-001219)

[1:02:52] JB Brown & Sons and Westbrook Development Corporation returned with a revised, ~306-unit mixed market-rate/affordable rental project (down from an original concept of 800+ units, and from 322 at the last workshop) on ~68 acres between Stroudwater Street and the arterial, near Westbrook Middle School. A workshop item — no approval was requested or voted on tonight.

Why it's this meeting's one real controversy
Nine members of the public spoke, almost entirely on one theme: routing an estimated 500+ daily vehicle trips onto two-lane Stroudwater Street (which becomes Westbrook Street in Portland) instead of the limited-access arterial bordering the back of the site.

The public's case

> *"This road can be altered. The idea that it can't be altered is untenable… I'm asking the planning board to give deference to those who have already committed to living in this area… over the convenience of the cost of a developer who probably [isn't] going to live here or live with the consequences."*

— Fred Fowler, Portland resident on Westbrook St. (public comment) [1:36:20]

> *"We're talking about Westbrook Street, Stroudwater Street, a two-lane street, with over 500 more cars… This should be going off onto Rand Road."*

— Deborah Napier, Portland resident on Congress St. (public comment) [1:43:13]

> *“This is the wrong development on the wrong piece of land… If the developer's design triggers localized flooding or alters the natural drainage onto adjoining agricultural fields, it creates immediate civil liability.”*

— Beth Paulson-Omstead, reading a statement for abutting farm owner Arthur Randall (public comment) [1:46:32]

Also speaking against the Stroudwater Street access point: Woody Howard, President of the Stroudwater Neighborhood Association [1:39:59], who asked whether anyone has made a direct appeal to the Maine Department of Transportation (MDOT) about reclassifying the road; Elizabeth Gateen [1:50:07]; Deborah Romery [1:53:05], who described cars already parked along the full width of Stroudwater St. during a September school cross-country event; and David Kent, President of the Maine Farm Bureau [1:58:04], who warned the development team to proactively disclose to future tenants that they're moving next to an active farm.

Staff's response

> *“There's more to the development than just the vehicular access in and out. There is the pedestrian traffic, the bicyclists… introducing the vehicular access to the arterial is inherently introducing pedestrians and bicyclists to that as well.”*

— Rebecca Spitella, City Planner [2:01:49]

Staff explained the arterial is a "control of access" highway — the City purchased out curb-cut rights along it during its original construction, so no new curb cut is legally permitted there regardless of this project. A pedestrian crossing at that 45-mph section would require a grade-separated bridge, estimated at **$5–10 million**, which both the Maine Department of Transportation (MDOT) and staff oppose on safety grounds. Staff's position: Stroudwater Street has adequate capacity for this project's trip count, and any needed intersection improvements would come out of a separate traffic movement permit.

Board reaction (discussion only — no vote)

> *“I've driven down Stroudwater twice a day, every day for twenty years… you're just waiting, and that's existing traffic… that is the problem.”*

— Vice Chair John Turcotte [2:08:06]

Turcotte also pressed on whether the middle-school access point could truly be enforced as emergency-only, and asked for stronger buffering for neighboring homes and the Randall farm. Karen Axelson questioned why a road's access designation can't be revisited the way zoning can be; staff clarified the arterial is a state (not city) road and the access restriction was purchased as part of its original federal-aid construction. Robin Tannenbaum and Nancy Litrocapes separately pressed the applicant team (Tuck O'Brien, JB Brown & Sons; Tyler Norad, Westbrook Development Corporation; Caleb Barassa, civil engineer) to make the affordable-housing building cluster feel less visually separated from the market-rate buildings, and to preserve a trail connection and farmland buffer. The applicant team committed to continuing that work and to coordinating directly with the Stroudwater Neighborhood Association, but did not change the access plan on the spot.

Key Decisions

No vote — workshop item. The project remains at the workshop stage; next step is state permit applications, with a return to the board expected spring 2027.

Workshop — 680 Methodist Road (26-000821)

Site Plan — Methodist Homes, LLC [2:32:24]

Discussion Summary

A scaled-back revision of a 9-lot/private-way subdivision the board approved in 2023 that proved too costly to grade; the applicant now proposes 6 duplex buildings (12 units) on ~19 wooded acres between 630 and 706 Methodist Road, with most of the parcel left undeveloped at the rear. Board feedback focused on buffering/screening (including headlight glare toward a neighboring house) and setbacks from Methodist Road (a 25-foot vegetative buffer plus a 30-foot structure setback). Member Kevin Price disclosed he is within the project's notification radius, though not an abutter, and offered to recuse from any future vote; the board had no objection to him participating tonight.

Key Decisions

✓ No vote — workshop item; feedback only.

Action Items

None.

Planner's Business (26-000847)

[2:43:23] Two ordinance amendments, part of a city-wide review of board/committee ordinances (seven other boards were already amended by City Council on Sept. 21, 2026): changes to the Village Review Overlay Zone (VROZ) committee, and to Zoning Board of Appeals (ZBA) enforcement appeals. Workshop only — a public hearing and formal recommendation to City Council are planned for the November meeting.

The Village Review Overlay Zone (VROZ) piece drew no opposition: staff proposed returning VROZ architectural review authority to the Planning Board and sunsetting the VROZ committee, which longtime member Robin Tannenbaum supported: “as a founding member… times have changed… let her go.” The Zoning Board of Appeals (ZBA) piece was different.

The proposal (Jenny Franceschi, Assistant City Administrator)

Remove a property owner's ability to appeal a Code Enforcement Officer (CEO) enforcement action to the Zoning Board of Appeals (ZBA) — that path would go to Superior Court instead. Appeals of a CEO's interpretation of the ordinance, or of a permit denial/approval, would still go to the ZBA unchanged. Rationale: the City now sends separate attorneys for the CEO and the ZBA to every enforcement-action hearing, which Franceschi said has become a real cost driver.

The case against

> *“If you're aggrieved in any way, you have to go off to court… I think that's a bad idea… You get before the [ZBA] fast… [In court] you got 21 days to go find an attorney… I have a case now, we're seven months in.”*

— Vice Chair John Turcotte (former ZBA member, real estate litigation attorney) [2:55:37]

Turcotte argued the change would be “very selfish… on the city's behalf and to the detriment of Westbrook citizens,” since a Superior Court appeal is slower and more expensive for the resident even if it saves the City legal fees, and that most real cases are ordinary neighbor disputes rather than the hypothetical bad actors used to justify the policy.

Staff's rebuttal

> *“We're getting advised from our own attorneys that this is actually in the city's best interest… we are paying for two attorneys for every meeting now.”*

— Jenny Franceschi, Assistant City Administrator [2:59:03]

Franceschi said the City now requires separate counsel for the CEO and the ZBA at enforcement hearings — not required by the current ordinance, but current practice — and that the change followed specific legal advice after a run of costly cases. Member Kevin Price noted a “collaborative” culture could change with staff turnover even if the ordinance doesn't, which could make the restriction more consequential later. The ZBA's own chair, shown the draft in advance, asked staff to go further and remove ZBA appeals from the Shoreland Zoning section too, which staff incorporated.

Key Decisions

No vote — workshop/referral item. Returns to the board in November for a public hearing and formal recommendation to City Council.

Closing Discussion & Adjournment

November Meeting Date (Election Day Conflict) [3:15:15]

Discussion Summary

Chair McWilliams, who is running for a State House seat, noted the board's November meeting falls on Nov. 3 — Election Day — and he won't be able to attend. Staff (Jenny Franceschi) said this year's date can't move because of public-noticing requirements and because the pending data-center ordinance's own timeline depends on that meeting, but agreed the recurring every-other-year conflict is worth revisiting for future election years.

Key Decisions

✓ No vote — discussion only; November 3rd meeting date stands for this year.

Action Items

• Revisit the Planning Board's meeting-date policy for future election years — Assignee: City Administration | Deadline: none set.

How this was made

This summary was produced from the meeting video (linked above, hosted on the City's Vimeo showcase). The audio was transcribed with AI-assisted speech-to-text and speaker identification. This process cross-checked names against the official Planning Board roster, attributed speakers from context (introductions, roll-call order, direct address by the Chair) rather than the raw diarization labels alone, and drafted this summary and the quoted excerpts. Quotes are lightly cleaned of filler words/false starts but not reworded. Review tier: Not reviewed.

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